NOAH NHIMBA
versus
TRIAL OFFICER CHIEF SUPERINTENDENT C MAGURANEMO
and
COMMISSIONER GENERAL OF POLICE

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 3 June 2026

Urgent chamber application

K Mawodzwa for the applicant
Mrs P Nyamukapa for the respondents

WAMAMBO J: This was a matter for Stay of Execution pending Application for Review.

The applicant was charged and convicted in terms of the Police Act [*Chapter 11:10*], for misappropriating $6 000 USD said to have been under his control in the course of duties as finance clerk. The applicant was sentenced to a custodial sentence of 10 days.

The Respondents dismissed the Applicant's appeal, which was filed through its tribunal.

The said order automatically allows the Respondents to proceed and detain the Applicant at their detention barracks. Whilst the appeal automatically stayed the execution of the order, the application for review does not.

The Applicant is of the view that, since the order confirms the imminent detention of the Applicant, the Application for Review will become academic and overtaken by events if temporary relief is not granted pending the outcome of the review.

The first respondent, in turn, started by raising the following points in limine. Firstly, it was the respondent's submission that the application is not urgent and is not proper before this

Honourable court. The respondent averred that the applicant seeks to stay the execution of an appeal judgment, which has not yet been served upon him. He submitted that in the absence of service of the impugned judgment, there exists no enforceable or operative decision capable of execution.

Secondly, the respondent added that the Applicant had not exhausted internal remedies. The respondent submitted that the applicant ought to have waited to be formally served with his appeal judgment, then, and only after, if he was displeased with the outcome, could he then, have approached the court to review the appeal judgment.

Analysis

I will address the first point in limine.

In *Kuvarega* v *Registrar General 1998 (1) ZLR 188 (H),* CHATIKOBO J stated at page 198 F that:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning. A matter is urgent if, at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been delay…"

The facts disclose that whilst the respondent may not have served the judgment on the person of the applicant, the judgment was, however, delivered, and the respondent admits as much.

If the applicant cannot file for a stay until they are served, but the other party can execute immediately upon service, the applicant is left defenceless.

The appeal by the applicant was filed and dismissed in January 2026; the present application was filed on 4 February 2026. It can hardly be said that the time it took the applicant to file the review is protracted by any stretch of the imagination.

If the respondent's logic holds, they could serve the judgment at 4:00 PM and execute at 4:01 PM before a stay could even be filed. The law cannot be intended to create a window of time during which a citizen is stripped of their right to seek a stay of execution.

The court finds that the application meets the criteria for urgency.

On the second point in limine, the court makes the following findings. An internal remedy refers to a formal grievance process within an organisation that a party must exhaust before approaching a court of law. The respondent's contention that the applicant's filing of the review application before service of the judgment amounts to circumventing an internal remedy is misplaced. The second point in limine is flawed because it reflects a misunderstanding of what constitutes an internal remedy. The applicant's appeal against the decision of the first respondent to the second respondent was, in fact, the proper use of an internal remedy. Service of a judgment is merely a procedural step within that remedy, not the remedy itself. The court dismisses the second point *in limine*.

The facts are clear. The respondents can execute the order as soon as it is served upon the applicant, before he even has a chance to file the review application. The applicant would suffer irreparable prejudice as not only would the review be rendered moot, but the sentence could be carried out as well.

Should the applicant wait for service, he risks being arrested the very moment service is effected. The court finds that the applicant has no alternative remedy pending the hearing of the application for review contesting the respondents' proceedings. The application being meritorious, the court makes the following order:

TERMS OF FINAL ORDER SOUGHT

That you show cause to this Honourable Court why a final order should not be made in the following terms:

1. That Stay of Execution of order for detention of the Applicant be and is hereby granted.

2. Respondent to bear costs of suit.

INTERIM ORDER GRANTED

That pending the confirmation of this matter the Applicant is granted the following relief:

1. Pending the finalisation of the case of Review under case HCH 454/26, the respondents are hereby, barred, interdicted or refrained from enforcing the warranty of detention against the Applicant.

2. Respondent shall pay cost of suit

WAMAMBO J……..

Mugiya Law Chambers, the applicant's legal practitioners
Civil Division of the Attorney General, for the respondents